

WASHINGTON STATE

Spokane Sheriff's Office disables automated license plate reader due to new state regulations

By Mitchell Roland and Mathew Callaghan, The Spokesman-Review, Spokane, Wash. *The Tribune Content Agency*

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OLYMPIA - The Spokane County Sheriff's Office has temporarily disabled its automated license plate readers following the recent passage of new state guidelines on how the technology can be used.

The legislation, which Gov. Bob Ferguson signed earlier this week, allows the cameras to be used to search for stolen vehicles, to find missing or endangered people, and to locate those with felony warrants or vehicles connected to the investigation of a felony. The cameras can also be used for parking

enforcement, car tolling and for real-time traffic information by transportation agencies.

The changes come after reports that the data from the state's license plate readers could be accessed by federal immigration agents. There were other worries regarding widespread surveillance.

Sheriff John Nowels this week said he believed that although "some in the Legislature had good intentions," it appears "they did not completely understand ALPR technology, how effective it is, or the many ways it is used and not used."

There are 70 cameras in fixed locations, 18 mobile ALPRs, and between six and 10 cameras mounted on wheels and mobile radar trailers across the greater Spokane area. All of these cameras are deactivated for the time being, Nowels said. He said there's a high chance that the mobile license plate readers will not be used again because of how difficult it is to make sure they're not recording in "restricted areas."

Such areas include churches, schools, immigration courts, some medical clinics, food banks and other sites. Nowels, however, said the specifics are not well-defined in the bill.

"We might have a camera that is within two blocks of a school, but is that in the vicinity?" Nowels said. "We don't know. So this is all going to be about processes and making sure that we're comfortable with where we put them."

Nowels said not everything in the legislation is bad, but that the sheriff's department must "make amends with some of legislators in the future and try to get some of these hurdles fixed."

"These imposed restrictions have made it nearly impossible for law enforcement agencies across the State of Washington to continue using ALPR systems as currently designed and implemented, and that is unacceptable,"

Nowels said in a statement. "I will continue to work with legislators and other law enforcement organizations to help find a reasonable solution to the unintended consequences that I believe make our community less safe."

Prior to the signing of this bill, for example, Nowels said his agency could run searches against a database generated from information stored in the National Crime Information Center. But this new legislation specifically prohibits the sheriff's office from using the NCIC to do any searches.

The legislation included an emergency clause, which means it took effect immediately upon the governor's signature.

In recent days, several other law enforcement agencies across the state have turned off the license plate readers.

The Pierce County Sheriff's Office announced Monday it had suspended use of the technology, which it said "diminished" its ability to quickly and effectively respond to ongoing situations. The Richland Police Department also stopped use of the technology, citing the legislation Ferguson signed.

As he signed the legislation on Monday, Ferguson said the bill "strikes a balance" by "allowing use of this tool while safeguarding the sensitive information it generates."

The bill was cosponsored by state Sen. Jeff Holy, R-Spokane, a former Spokane Police detective who said during a January committee hearing the legislation wasn't what he would have drafted. But following "a bit of talking" with State Sen. Yasmin Trudeau, D-Tacoma, who sponsored the legislation, he became convinced it's not a partisan or legal issue.

"This is a 'being a private citizen in the state of Washington issue,' " Holy said. "Are we seriously going to argue that people don't have a reasonable expectation of privacy when it comes to every single movement being tracked? Especially when it concerns what time you drop your kids off at school? When

and where you attend religious services? Which kind of doctor you're going to visit? It struck me."

During his testimony, Holy said the bill "doesn't do anything other than restate the Keep Washington Working Act," the state law that limits local agencies' cooperation with federal immigration enforcement.

"So it doesn't do any more damage, any less," Holy said. "It just leaves things as they are. I'm not a big proponent of that, but this bill does not enhance or degrade that. It just is what it is."

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